



**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
41 U.S.C. 3304**

J&A-20-0057

Pursuant to the requirements of the Competition in Contracting Act (CICA) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.3 and in accordance with the requirements of FAR 6.303-1. The class justification for the use of the statutory authority under FAR Subpart 6.3 is based on the following facts and rationale required under FAR 6.303-2 as follows:

1. Agency and Contracting Activity.

The Department of Homeland Security (DHS), Immigration and Customs Enforcement (ICE), Office of Acquisition Management (OAQ), proposes to enter into contracts with individual detention facilities on behalf of the Enforcement and Removal Operations (ERO) on a basis of other than full and open competition to support Executive Order (EO) 14159, Protecting the American People Against Invasion, and Proclamation 1088, Declaring a National Emergency at the Southern Border, both signed by the President on January 20, 2025.

2. Nature and/or description of the action being approved.

(a) Type of actions: 9 Single Award Indefinite Delivery Indefinite Quantity (IDIQ) Contracts, Hybrid FFP/LH, Utilizing Annual Appropriations

(b) Amount of the current J&A: The cost per facility for a five-year period is listed below:

Facility Name	AOR	State	# Beds	5-Year Detention Cost Est.	5-Year Ground Transportation Cost Est.	5-Year Total Cost Est.
North Lake Correctional Facility	CHI	MI	1,800			
California City Correctional Facility	LOS	CA	2,000			
Midwest	CHI	KS	1,000			
Totals						

(c) Brief Description: The nine facilities listed above are required to support ICE detention and removal requirements for detention services. The agency will enter into contracts for



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a period not to exceed five years, supporting the national emergency and continued need to house aliens to meet overall removal requirements as defined administration.

3. Description of Supplies/Services.

ICE's law enforcement mission requires it arrest and detain aliens unlawfully present in the United States to effectuate their removal. ICE maintains detention capacity in facilities nationwide in a mixture of ICE-owned, privately-owned, and state and local facilities. Each detention facility operates under ICE's national detention standards and provides all service and resources needed to house aliens pending the outcome of immigration proceedings. ICE increases and decreases detention capacity to ensure sufficient beds are available to accommodate shifting migration patterns and to support enforcement priorities as dictated by the administration and DHS leadership. This request is to procure detention capacity in nine facilities in the following ICE ERO areas of responsibility: CHI, LOS, PHO, DEN, WAS, and ELP. In all, these facilities will provide ERO with approximately 10,312 beds at a five-year cost of approximately [REDACTED] to [REDACTED] per year per facility (cost varies due to various factors). Vendors will provide all staffing and resources necessary to house aliens in Federal custody pending the outcome of immigration proceedings.

4. Identification of statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. §3304 as implemented by:

6.302-2: Unusual and compelling urgency.

The HCA will provide a written determination in accordance with FAR 6.302-2(d)(1)(ii) (HSAM 3006.302-2(d)(1)(ii)), for an unusual & compelling urgency sole source exceeding 12 months. The agency is seeking a period of performance of five years for each of the identified facilities (nine) supporting the current national emergency for alien detention and removal.

5. Demonstration that the nature of the acquisition requires use of the authority cited.

As part of its immigration enforcement mission, ICE ERO maintains a network of detention facilities throughout the United States to house aliens placed in removal proceedings and for those awaiting removal from the United States. ICE strives to maintain sufficient bedspace to support its own law enforcement activities, including the arrests of aliens with criminal histories from prisons and jails and aliens at-large that pose threats to national security and public safety in the interior of the United States, and to accommodate fluctuating alien referrals from U.S. Customs and Border Protection (CBP). ICE is currently funded for 41,500 beds across approximately 130 detention facilities nationwide that are a mixture of ICE-owned, privately-owned, and state and local facilities. ICE is detaining over 43,000 aliens as of February 18, 2025. ICE needs to obtain bed capacity to meet the administration's interior enforcement and border decompression goals—and removing one million aliens annually.



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On January 20, 2025, President Trump issued a series of Executive Orders related to border security, including the “Declaration of a National Emergency at the along the Southern Border of the United States,” and orders for “Securing Our Borders,” and “Protecting the American People Against Invasion.” These Executive Orders direct DHS to, among other things, take all appropriate actions to detain, to the fullest extent permitted by law, aliens apprehended for violations of immigration law until their successful removal from the United States. Also, on January 29, 2025, the President signed the Laken Riley Act, Public Law 119-1, into effect requiring ICE to, among other things, detain certain aliens who have been arrested for burglary, theft, larceny, or shoplifting. This law creates a new category of aliens who are considered a public safety risk and would previously not have been detained by ICE. Accordingly, ICE has been tasked by DHS leadership with bringing an additional allotment to approximately 60,000 detention beds online to accommodate increased arrests within the interior of the US in furtherance of the executive orders and would bring ICE’s total bed capacity to nearly 100,000 beds.

In recent years many jurisdictions started refusing to work with ICE due to its burdensome detention standards and arduous oversight and inspections process. Nearly 17 different entities have authority to inspect ICE facilities. Additionally, several jurisdictions have passed ordinances barring local governments from working with ICE. Since FY 2022, over 100 detention facilities have exited ICE’s detention network, causing a significant drop in available bed capacity. ICE has also been subject to litigation and court-ordered facility-specific population caps and intake bans, further decimating ICE’s detention capacity. The above referenced executive orders and legislation require a default to detention for most aliens apprehended along the Southern border, as well as interior arrests, which necessitates ICE expand bed capacity immediately.

ICE is procuring additional beds through intergovernmental service agreements with jurisdictions willing to work with ICE, including expanding our use of U.S. Marshalls facilities, to meet its bed capacity needs. However, many jurisdictions continue to refuse to cooperate with ICE. Therefore, ICE is increasingly reliant on private detention operators to fill these gaps and increase detention capacity. Full and open competition for such facilities averages one year to complete and many detention facilities require renovations to meet ICE’s rigorous detention standards and design requirements. In many cases detention facilities are not ready for ICE’s use for 12 to 18 months. ICE does not have the time for the competitive process to be completed to procure more beds. Increased detention capacity is needed immediately to avoid the release by ICE of a significant numbers of aliens into United States, a situation that poses significant public safety risks. Inadequate detention capacity would likely lead to overcrowding in Border Patrol facilities along the southwest border (SWB) which directly threatens the life, health, and safety of DHS personnel, contractors, and aliens in Federal custody. ICE’s use of detention is directly tied to ICE’s ability to secure our nation’s borders and safeguard the integrity of our immigration system.

The facilities included in this J&A have available detention capacity exclusively for ICE’s use and are in operationally advantageous locations. ERO has limited bed capacity in each of



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these locations and these facilities will provide ICE with much needed resources outside of the SWB which will in turn support ICE's interior enforcement activities.

ICE/OAQ intends to procure additional contract detention facilities (CDF's) to support the declared emergency on the Southern Border to remove one million aliens per year in line with the administration's goal of removing 10 million illegal aliens overall. Pursuant to FAR 6.302-2, and as is further detailed herein, the agency need for services is so urgent and compelling that providing full and open competition would result in unacceptable delays and serious injury to the Government. The above-referenced Executive Orders further highlight the urgent need to acquire additional detention beds supporting both detection and removal operations.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as is practicable.

OAQ does not intend to publicize this requirement, **prior to award**, based on the following 5.202(a) exception: 5.202(a)(2). As is discussed above, the proposed contract action is being made under the circumstances described in FAR 6.302-2. The Government would be injured if ICE complies with the time periods specified in FAR 5.203.

7. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The contracting officer determines that the anticipated price(s) will be fair and reasonable based on prior prices paid for facilities that match the location and required services as the facilities listed above. The program office provided estimated costs for all required services for a five-year period of performance. The contracting officer reviewed the government estimates against historical pricing for similar detention facilities currently under contract with ICE. A Detention Services Cost Statement (DSCS) will also be required of each vendor and evaluated to determine price reasonableness.

8. Description of market research.

ICE continuously conducts market research (including during the past 18 months) to assess available detention capacity across the United States to support ERO's detention and removal mission. OAQ has issued numerous requests for information (RFI's) to support detention operations. ERO HQ and field office locations assess the national and geographic detention requirements for current facilities to support ICE bed space. The nine locations identified above that are subject of this action were selected by ERO to provide detention capacity in specific geographic areas which are of critical operational importance to ICE. The facilities identified represent locations that meet the immediate needs of ICE to support the detention and removal directive from the administration. ICE continues to review all potential contract types and facilities, from existing facilities being utilized by other DHS components or other government entities (e.g., DoD, state and local facilities, jails and locations for soft or hard sided facilities).

9. Any other facts supporting the use of other than full and open competition.



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As stated above, several states and local jurisdictions have passed legislation barring localities from working with ICE. Aside from these challenges, there is a limited pool of detention operators nationwide. Many available facilities across the country are not suitable for ICE's population (based on required ICE detention standards and current facility configuration). ICE will continue its efforts to conduct market research and pursue competitive contract actions for future requirements. ICE will continue to identify and procure expanded capacity in areas locations where limitations are not as dire, and the agency is not facing an urgent need for space.

10. A listing of the sources, if any that expressed, in writing, an interest in the acquisition.

ICE intends to work with the vendors that own/control the identified locations to meet current detention needs. Our primary vendor pool continues to offer locations nationwide to support detention operations. ICE has also reviewed using DoD, state and local assets and facilities to meet overall mission requirements. As noted above ICE ERO conducts continuous market research to support its overall detention requirements. OAQ issues various RFIs for specific requirements and field offices determine detention bed needs specific to their AOR based on available targets and arrest trends. ERO HQ staff review individual AOR needs to ensure they align with overall agency detention needs, space requirements, and allotted funding and bed space requirements authorized by Congress.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for supplies or services required.

ICE/ERO is planning a nationwide industry date to identify support for all ERO business lines. The industry day will cover field operations, removals, bed space, etc. This industry and continuous review of agency requirements will enable the agency to explore all potential options to support the detention and removal mission.

After award of this action, DHS intends to post the approved/signed justification pursuant to 6.305.

12. Contracting Officer's Certification.

I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.

Contracting Officer

Date

When the Contracting Officer is the final (and only) approving official, change the title of this paragraph to "Contracting Officer's Certification and Approval" and remove the "APPROVAL" section in its entirety.



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The Contracting Officer is the final approving official when the action is less than or equal to \$750K and must also sign the justification when the contract is awarded under FAR 6.302-7, Public Interest, regardless of dollar amount.

13. Technical/Requirements Personnel Certification.

I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.

Technical Representative/COR

Date

14. Approval.

Procuring Activity Advocate for Competition

Date

Note: Competition Advocate is the approving official when the action exceeds \$750K but does not exceed \$15M and must also sign the justification when the contract is awarded under FAR 6.302-7 Public Interest, regardless of dollar amount.

Head of Contracting Activity

Date

Note: Head of Contracting Activity (HCA) approves when the action is equal to or exceeds \$15M but is less than \$75M and must also sign the justification when the contract is awarded under FAR 6.302-7 Public Interest, regardless of dollar amount.

Chief Procurement Officer

Date

Note: The Chief Procurement Officer (CPO) is the final approving official when the action is equal to or exceeds \$75M; the CPO must also sign the justification when the contract is awarded under FAR 6.302-7, Public Interest, for the DHS Secretary's approval.



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REMINDER:

Justifications over \$75 million must be reviewed and signed by the Contracting Officer, Competition Advocate, and the HCA before they are submitted to OCPO for final signature.